

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Squad #16	CCRB Case #: 201411248	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/29/2014 6:10 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/29/2016	Precinct: 121
Date/Time CV Reported Wed, 11/05/2014 12:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/05/2014 12:29 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBSI
2. DT3 Michael Rivera	05055	927423	NARCBSI
3. DT2 Stephani Sanchez	03033	926067	NARCBSI
4. An officer			NARCBSI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Andrew Fago	02171	928265	NARCBSI
2. SGT Kenneth Tysdal	03827	915998	NARCBSI
3. CPT Norman Miller	00000	916231	NARCBSI
4. LT Dominick Capuano	00000	917377	NARCBSI
5. DT2 Joseph Ryan	06479	929101	NARCBSI
6. DT2 Cesar Brenes	05639	913611	NARCBSI
7. DT2 Brendan Obrien	06356	922883	NARCBSI
8. DT3 James Malpeso	02939	932948	NARCBSI
9. DT2 Raymond Wittick	00710	905308	NARCBSI
10. DT2 Charles Fico	07201	911937	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in Staten Island.	A . Exonerated
B . DT3 Michael Rivera	Force: Det. Michael Rivera pointed his gun at § 87(2)(b)	B . Exonerated
C . DT3 Michael Rivera	Force: Det. Michael Rivera struck § 87(2)(b) with a gun.	C . Unsubstantiated
D . An officer	Force: An officer used physical force against § 87(2)(b)	D . Exonerated
E . DT2 Stephani Sanchez	Abuse: Det. Stephanie Sanchez strip searched § 87(2)(b)	E . Unsubstantiated

Case Summary

On October 29, 2014 at 6:05 a.m., Narcotics Borough Staten Island officers executed a search warrant at § 87(2)(b) in Staten Island (**Allegation A**). In the first floor bedroom, in which § 87(2)(b) and his girlfriend § 87(2)(b) were sleeping, Det. Michael Rivera allegedly pointed his gun at § 87(2)(b) and used his gun to nudge § 87(2)(b) head (**Allegations B and C**). An unidentified officer allegedly pulled § 87(2)(b) out of the bed (**Allegation D**). Det. Stephanie Sanchez allegedly strip searched § 87(2)(b) in the bedroom (**Allegation E**).

Two stun guns and one zip lock bag of cocaine were recovered from § 87(2)(b) bedroom. § 87(2)(b) and § 87(2)(b) were both arrested and charged with § 87(2)(b) (01 Board Review)

§ 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- Because § 87(2)(b) and § 87(2)(b) were arrested, the case was ineligible for mediation.
- As of May 20, 2015, § 87(2)(b) and § 87(2)(b) have not filed a notice of claim in regards to the incident.

• § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint in which § 87(2)(b) is involved.
- Det. Rivera has been a member of the service for 14 years and there are two substantiated CCRB allegations against him. In #201207787, the CCRB substantiated a search allegation against him and recommended charges. In #201303418, the CCRB substantiated a stop allegation against him and recommended charges. As of the date of this report, the NYPD dispositions are yet to be available. § 87(2)(g)
- Det. Sanchez has been a member of the service for 15 years and there are no substantiated allegations against her. A prior strip search allegation was unsubstantiated.

Potential Issues

- § 87(2)(b) stated that four other family members were present inside of the house: his mother § 87(2)(b) his brother § 87(2)(b) and his sisters § 87(2)(b) and § 87(2)(b). However, he stated that they were sleeping in bedrooms located on the upper floors at the time of the incident and would not have witnessed any events inside of § 87(2)(b) bedroom.

NYPD Documents

- On § 87(2)(b), the Honorable Judge § 87(2)(b) of Richmond County Criminal Court signed Search Warrant § 87(2)(b), requested by Det. Fago, authorizing any NYPD officer to enter and search § 87(2)(b) including the garage, without prior notice. Officers were directed to search for and seize cocaine and other indicia of drug trafficking. The warrant also specified § 87(2)(b) as a target individual of the search warrant. The officers were mandated to execute the search warrant within 10 days of issuance. (03 Board Review)
- The search warrant pre-execution plan showed that 12 members of the Narcotics Borough Staten Island were involved in executing Search Warrant § 87(2)(b) at § 87(2)(b). Capt. Norman Miller was the overall supervisor, Lt. Dominick Capuano was the entry supervisor, Sgt. Kenneth Tysdal was the module supervisor, Det. Rivera and Det. Joseph Ryan comprised the first bunker team, Det. Cesar Brenes and Det. Brendan O'Brien comprised the second bunker team, Det. James Malpeso operated the ram, Det. Fago operated the kelly and sledge tools, Det. Sanchez was assigned to cuff and toss, Det. Raymond Wittick was assigned to animal control, and Det. Charles Fico was assigned to outside security. (03 Board Review)

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) stated that the officer who nudged him in the head with a firearm was also carrying a bunker shield. Det. Rivera, who was part of the first bunker team, acknowledged carrying a bunker shield and being the first officer to enter § 87(2)(b) bedroom on the first floor. He acknowledged having his firearm pointed and ordering § 87(2)(b) to show his hands. Sgt. Tysdal added that the second bunker team immediately proceeded to the second floor of the house upon entry. § 87(2)(g)
- § 87(2)(b) alleged that a heavy-set plainclothes white male officer with yellow teeth and in his 40s, whom she could not describe further, pulled her out of the bed and onto the floor. None of the interviewed officers could specify which officer interacted with and handcuffed § 87(2)(b). § 87(2)(g)
- § 87(2)(b) alleged that a 5'8" tall Hispanic female plainclothes officer with brown hair strip searched her when they were alone inside of § 87(2)(b) bedroom. Det. Sanchez, a § 87(2)(b) Hispanic woman with brown hair and the sole female officer listed on the search warrant pre-execution plan, generally matches § 87(2)(b)'s description and she acknowledged supervising § 87(2)(b) get dressed in the bedroom. § 87(2)(g)

Recommendations:

Allegation A- Abuse of Authority: Officers entered and searched § 87(2)(b) in Staten Island.

On § 87(2)(b), Det. Fago obtained search warrant § 87(2)(b) for § 87(2)(b) in Staten Island, and the warrant was executed on October 29, 2014 within 10 days of issuance as directed. § 87(2)(g)

it is recommended that **Allegation A** be **exonerated**.

Allegation B- Force: Det. Michael Rivera pointed his gun at § 87(2)(b)

Allegation C- Force: Det. Michael Rivera struck § 87(2)(b) with a gun.

It is undisputed that Det. Rivera's gun was pointed as he entered § 87(2)(b) bedroom.

§ 87(2)(b) and § 87(2)(b) stated that Det. Rivera entered the bedroom yelling, "NYPD, search warrant," then proceeded to point his gun at § 87(2)(b) head, poking him on the left temple with the barrel of the

gun. Det. Rivera then instructed § 87(2)(b) to get out of the bed and put his hands up. § 87(2)(b) stated that the poke was not painful and he did not sustain any injuries as a result of this incident.

Det. Rivera stated that § 87(2)(b) and § 87(2)(b)'s hands were not initially visible, but they complied within seconds of being instructed to show their hands. Det. Rivera denied making physical contact with § 87(2)(b). He denied aiming his gun at any civilian's head, and denied that his gun contacted any civilian's head. Det. Ryan, who followed behind Det. Rivera, did not witness this allegation. Det. Fago, who handcuffed § 87(2)(b) after the bunker team entered, did not witness this allegation. Sgt. Tysdal stated that he did not witness any events inside of § 87(2)(b) bedroom.

An officer has broad discretion to draw and point his firearm at an individual if he has a reasonable fear for his or another's safety. NYPD v. Gliner, OATH Index No. 955/00 (2000). (04 Board Review)

§ 87(2)(g)

Therefore, it is recommended that Allegation B be **exonerated**.

§ 87(2)(g)

Therefore, it is recommended that Allegation C be **unsubstantiated**.

Allegation D- Force: An officer used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) did not immediately comply with instructions to show her hands or to get out of bed.

§ 87(2)(b) stated that she hid under the blankets when ordered by unidentified officers to get out of the bed because she was topless and afraid. She alleged that an unidentified officer pulled her by her right arm out of the bed, causing her to land in a sitting position on the floor. § 87(2)(b) stated that her buttocks were sore, but she did not seek any medical treatment. § 87(2)(b) corroborated this allegation.

No interviewed officer acknowledged making physical contact with § 87(2)(b) seeing any officer pull her to the floor, or seeing § 87(2)(b) on the floor at any time.

Patrol Guide Procedure 203-11 requires officers to use minimum necessary force. (04 Board Review)

§ 87(2)(g)

Therefore, it is recommended that Allegation D be **exonerated**.

Allegation E- Abuse of Authority: Det. Stephanie Sanchez strip searched § 87(2)(b)

It is undisputed that § 87(2)(b) was topless and wearing only panties, with a bed sheet wrapped around her body, and in handcuffs at the time she first interacted with Det. Sanchez.

With the exception of Det. Sanchez, § 87(2)(b) and the other officers left the bedroom. § 87(2)(b) alleged that Det. Sanchez instructed § 87(2)(b) to drop the bed sheet and raise her arms, bend over, and pull her panty waistband away from her body. She alleged that Det. Sanchez also pulled her panty

waistband and looked inside. § 87(2)(b) stated that the strip search lasted a minute before Det. Sanchez handed her her bra and clothing.

Det. Sanchez stated that an unidentified officer called for her to assist § 87(2)(b) to get dressed. Det. Sanchez stated that she was not instructed by any officer to search § 87(2)(b) and that she did not need to because § 87(2)(b) was almost naked. Det. Sanchez did not suspect § 87(2)(b) of secreting drugs on her person. Det. Sanchez denied strip searching § 87(2)(b). Det. Sanchez stated that she probably asked § 87(2)(b) to drop the bed sheet in order to release her handcuffs so that § 87(2)(b) could dress herself; however, Det. Sanchez denied instructing § 87(2)(b) to raise her hands, tell her to bend over, or pull away her underwear to look inside. Det. Sanchez did not recall § 87(2)(b) to independently perform these actions and denied ever seeing § 87(2)(b)'s genitals. Det. Sanchez handed § 87(2)(b)'s clothes to her. Det. Sanchez denied making any physical contact with § 87(2)(b) beyond releasing her handcuffs and re-handcuffing her after she finished dressing.

§ 87(2)(b)'s arrest report did not note that a strip search was conducted. (01 Board Review)

§ 87(2)(g) Therefore, it is recommended that Allegation E be **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date